Board Policy x.xx.xxx-P

Protecting Student Access and Safe Schools

Portland Public Schools will ensure that all students have equitable access to education regardless of actual or perceived immigration or citizenship status.

PPS recognizes that access to a free, high-quality public education is a fundamental right. This commitment includes ensuring that students and families are not excluded from participation, denied services, or subjected to discrimination based on immigration status.

This policy builds on PPS's commitment to equity and social justice by fostering barrier-free environments where all students, regardless of identity or circumstance, have the opportunity to learn, belong, and thrive.

To ensure access, safety, and nondiscrimination for all students, PPS commits to the following:

I. Access to Education; Safe and Supportive School Environments

A. PPS will provide every PPS student with equitable access to enrollment, instruction, and school-based services, regardless of immigration or citizenship status.

B. PPS will eliminate barriers to access, including policies or practices that directly or indirectly discourage enrollment, attendance or participation by students or families based on immigration status. This includes proactively identifying and addressing unintended impacts of existing policies and procedures that may result in exclusion or loss of access to education.

   i. This commitment includes students who experience compounding barriers to access and stability, including those receiving services under McKinney-Vento (students experiencing homelessness), Title III (Multilingual Learners), Indian Education, and students in foster care. PPS recognizes that these student groups may be disproportionately impacted by immigration-related barriers and will ensure that policies and practices are implemented in ways that protect continuity of enrollment and access to services.

   ii. PPS will review and align related policies, including those governing enrollment, attendance, and withdrawal, to ensure that students are not unintentionally excluded from school due to immigration-related fears or circumstances.

C. PPS will maintain school environments that are safe, welcoming, and free from fear, intimidation, or disruption.

D. PPS will implement trauma-informed practices to support students and families impacted by immigration enforcement-related events.

II. Interactions with Immigration Enforcement

A. PPS will establish and implement clear procedures for responding to immigration enforcement activities on or near school property. At a minimum, PPS will:

   i. Designate a primary and secondary point of contact for coordinating interactions with federal immigration authorities occurring on or near school property;

ii. PPS's Office of Legal Counsel will review, verify the validity of, and respond to requests from federal immigration enforcement in coordination with the central office designee;

iii. Require school staff to immediately notify school administration office staff when immigration enforcement is present and follow PPS protocols;

iv. Identify at least one administrator or designee to confirm and provide notice to the central office designee that a federal immigration authority has entered school property for immigration enforcement;

v. Prioritize student safety and the continuity of the learning environment;

vi. Prohibit federal immigration enforcement access to non-public areas of PPS facilities or property; and

vii. Prohibit school staff from signing documents presented by federal immigration authorities or giving consent to any immigration action.

B. If federal immigration officers request to board a school bus or appear at a school sponsored event, PPS will follow the protocols in the PPS Immigration Enforcement Toolkit.

III. Protection of Student Information

A. PPS will protect the confidentiality of student and family information to the fullest extent permitted by law. In accordance with the Family Educational Rights and Privacy Act, student education records will not be disclosed without appropriate legal authorization, such as a judicial warrant or lawfully issued subpoena. Administrative warrants or requests that do not meet this standard are not sufficient for the release of student information.

B. PPS will not:

i. Require disclosure of immigration or citizenship status unless required by law;

ii. Collect or maintain information for the purpose of immigration enforcement; or

iii. Share student records without appropriate legal authorization.

C. All requests from immigration enforcement for student information will be referred to the PPS Office of Legal Counsel.

i. Unless otherwise prohibited by law or court order, PPS will provide notice to the student or parent/guardian of a student when PPS has provided information related to the student to a federal immigration authority.

IV. Family and Community Partnerships; Notice of Immigration Enforcement Presence

A. PPS will create welcoming environments and communication systems that ensure families have access to accurate information, resources, and support regardless of immigration status. This includes ensuring that all communications related to this policy are accessible in the primary languages of enrolled students, consistent with Title III obligations and PPS's Language Access Plan.

B. PPS will provide notice to students, parents/guardians, and community partners when a federal immigration authority is confirmed to be on school property for immigration enforcement. Notice will include, but is not limited to, the general location of the

federal immigration authority and whether classes or school operations are affected by the presence of the federal immigration authority.

i. Notice may not include personally identifiable information or any other information that may not be legally disclosed. PPS may not disclose information that may threaten the health or safety of students or employees or that is prohibited by court order.

ii. PPS will utilize multiple modes of communication to reach families, including translated written materials, oral interpretation, phone calls, text messaging systems, school websites, and community-based outreach channel.

C. PPS will prioritize outreach to students and families who may face heightened barriers to access, including Multilingual Learners and newly arrived or newcomer students, and partner with community-based organizations to ensure information is accessible, trusted, and culturally responsive.

D. PPS will actively engage and partner with community-based organizations to provide culturally responsive supports, including coordination of services, referrals to community resources, and agreements that expand access to social, legal, and wellness supports for students and families impacted by immigration enforcement actions.

V. Training and Capacity Building

A. PPS will provide training and guidance to all staff regarding this policy and related procedures at least every other year. Training will be accessible to all staff, including licensed, classified, and support staff, particularly those who may be the first point of contact at school entry points. Training will include, but is not limited to:

i. Staff roles and responsibilities during immigration-related incidents;

ii. Student privacy protections;

iii. State sanctuary law requirements;

iv. Communication protocols with families;

v. Application of PPS's Equity Lens in decision-making; and

vi. Guidance on distinguishing between a judicial warrant (signed by a federal judge or magistrate) and an administrative immigration warrant (signed by a federal agency official), including that only a judicial warrant compels compliance under Oregon law.

B. PPS will ensure access to this policy and the PPS Immigration Enforcement Toolkit in the Student Rights and Responsibility Handbook and on the PPS website.

Legal References: HB 4079 (2026); SB 1538 (2026)

History: Adopted _____.